



File No.: EXP202302662

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On August 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against A.A.A. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on March 21, 2024, the proposed resolution was issued, which is transcribed below:

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File No.: EXP202302662

PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: The GUARDIA CIVIL - PUESTO P. DE COSTA TEGUISE (hereinafter, the complainant), on February 16, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against Ms. A.A.A. with NIF ***NIF.1 (hereinafter, the defendant), for the installation of a video surveillance system located at ***ADDRESS.1, TEGUISE, with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant provides a Complaint Record dated January 31, 2023, which states that the defendant is responsible for an establishment that has a video surveillance system with cameras directed at the public road, without prior administrative authorization for this, poorly signposted as they have a sign indicating a video surveillance area that does not include a reference to the data controller and an address to which to direct requests for the exercise of rights. They also indicate that they lack informational brochures on data protection available to clients and users.

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The documents provided are:

- Reports made by the FFCCSE
- Photographic report

SECOND: The defendant has previously been the subject of a complaint before this Agency, giving rise to file EXP202202374.

THIRD: On August 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified in Article 83.5 of the GDPR.

FOURTH: After notifying the aforementioned initiation agreement in accordance with the rules established in the LPACAP, the respondent, as allegations, submitted a contract, dated September 27, 2023, between herself and the legal representative of SEGURIDAD LANZAROTE, S.L., as the company responsible for the processing, which, in summary, certifies that:

“The camera only captures a minimal strip of access to the property, making it unfeasible to record images in the public road.

It also does not capture images of adjacent lands and homes or any other external space.

One or more signs will be installed at the accesses to the video surveillance area, in a visible location, informing that access is to a video surveillance area.”

She also provides photographs, dated September 29, 2023, of the cameras, their location, and the space they capture.

FIFTH: A list of documents in the procedure is attached as an annex.

From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The file contains the Complaint Record from the GUARDIA CIVIL – PUESTO P. DE COSTA TEGUISE dated January 31, 2023, which states that the defendant is responsible for an establishment that has a video surveillance system with cameras directed at the public road, without prior administrative authorization for this, poorly signposted as they have a sign indicating a video surveillance area that does not include a reference to the data controller and an address to which to direct requests for the exercise of rights. They also indicate that they lack informational brochures on data protection available to clients and users.

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SECOND: The respondent party states in its allegations to the Initiation Agreement that the camera only captures a minimal strip of access to the property, making it unfeasible to record images in public spaces. It also does not capture images of adjacent land and homes or any other external spaces. Furthermore, one or more signs will be installed at the entrances to the monitored area, in a visible location, informing that access is to a monitored area. It provides photographs, dated September 29, 2023, of the cameras, their location, and the space they capture.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Moreover, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Allegations to the initiation agreement

In response to the allegations presented by the respondent party, the following should be noted:

Both the certificate from the data controller, dated September 27, 2023, and the photographs provided of the cameras, their location, and the space they capture, dated September 29, 2023, are subsequent to the initiation of this sanctioning procedure, whose initiation agreement was signed on August 24, 2023.

On the other hand, it states that one or more signs will be installed at the entrances to the monitored area, in a visible location, informing that access is to a monitored area, but without even indicating the data that the sign should contain.

In light of the above, the allegations presented by the respondent party are not accepted, as it has not demonstrated, prior to the initiation of the sanctioning procedure, that the cameras did not excessively capture the public road, in addition to certifying that there were no signs.

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The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

IV

Alleged infringement

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD states that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of preserving the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled concisely and understandably for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances.

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to monitored areas, whether interior or exterior. In the event that the video-monitored space has multiple access points, the designation of the video-monitored area must be displayed at each of them. This information must be provided in advance - considering Article 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Bodies.

In some cases, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified consent from their owners or, where applicable, from the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

V

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to comply with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Article 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled, in the terms already indicated.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, in the terms already indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The responsible party must maintain a record of activities of the processing operations carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, where applicable, adopt appropriate security measures.

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8.- When a security breach occurs that affects the processing of cameras for security purposes, whenever there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal

data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

Also of interest, in case of processing low-risk data, is the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

VI

Possible administrative infringement

In accordance with the evidence available at this moment in the sanctioning procedure, it is considered that the facts presented violate the provisions of Articles 5.1.c) and 13 of the GDPR, which could constitute the commission of two infringements classified in Article 83.5 of the GDPR, which states the following:

"The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of the data subjects under Articles 12 to 22; (...)"

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For the purposes of the statute of limitations for infringements, the infringements indicated in the previous paragraph are considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

- a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.
- b) The processing of personal data without any of the lawfulness conditions established in Article 6 of Regulation (EU) 2016/679.

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law."

VII

Proposed sanction

Article 58.2 of the GDPR establishes:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

- d) to order the controller or processor to bring processing operations into compliance with the

provisions of this Regulation, when appropriate, in a specific manner and within a specified period; (...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.”

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2.d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

With respect to the infringements of Articles 5.1.c) and 13 of the GDPR, taking into account the facts presented and without prejudice to the outcome of the instruction of the procedure, it is considered that the sanction that should be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in the

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Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following will be duly taken into account:

a) the nature, seriousness, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have contributed to the commission of the

infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

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The balance of the circumstances considered, regarding the infringements committed by violating the provisions of Articles 5.1 c) and 13 of the GDPR, allows for the imposition of a fine of 500 euros (five hundred euros), and another of 500 euros (five hundred euros), respectively.

It should be noted that the voluntary payment of the proposed amounts does not exempt from demonstrating the regularization of the video surveillance system, in accordance with the current regulations.

VIII

Possible measures

If the infringement is confirmed, it may be agreed to impose on the data controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”.

In such a case, in the resolution adopted, this Agency may require the data controller to demonstrate within the determined timeframe:

- That they have proceeded to remove the camera or video camera system from the current location, to reorient it, or to install a privacy mask, in such a way that the viewing of the images observed evidences that areas of public thoroughfare are not captured.
- That they have proceeded to place the informative device in the monitored areas or to complete the information provided therein (it must identify, at a minimum, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions), locating this device in a sufficiently visible place, both in open and closed spaces.
- That they maintain the information referred to in Articles 13 and 14 of the GDPR available to the affected parties.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

In light of the above, the following

PROPOSAL FOR RESOLUTION

That the Director of the Spanish Agency for Data Protection sanction Ms. A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, with a

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fine of €500 (five hundred euros), and for another infringement of Article 13 of the GDPR, with another fine of €500 (five hundred euros), classified under Article 83.5 of the GDPR.

That the Director of the Spanish Agency for Data Protection orders Ms. A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within ten working days, she must prove that she has proceeded to remove the camera from its current location or to reorient it, in such a way that the viewing of the images observed evidences that the public road is not excessively captured. Furthermore, the signs in the video surveillance areas must comply with the current regulations and contain all the data required by the same.

Likewise, in accordance with the provisions of Article 85.2 of the LPACAP, she is informed that she may, at any time prior to the resolution of this procedure, voluntarily pay the proposed fine, which will imply a reduction of 20% of its amount. With the application of this reduction, the fine would be established at €800 (eight hundred euros) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the fine.

In the event that she chooses to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, she must make it effective by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the fine. Furthermore, she must send the proof of payment to the General Subdirectorate of Inspection to proceed to close the file.

By virtue of this, she is notified of the above, and it is made clear that she may, within TEN DAYS, allege whatever she deems appropriate in her defense and present the documents and information she considers pertinent, in accordance with Article 89.2 of the LPACAP.

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B.B.B.

INSTRUCTOR

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ANNEX

Index of the file EXP202302662

16/02/2023 Complaint from GUARDIA CIVIL. COMMAND OF LAS PALMAS

24/08/2023 Agreement to initiate against A.A.A.

29/09/2023 Response to the request from A.A.A.

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SECOND: On April 19, 2024, the respondent has proceeded to pay the fine in the amount of €800 making use of the reduction provided in the previously transcribed resolution proposal.

THIRD: The payment made entails the waiver of any action or appeal in the administrative pathway against the fine, in relation to the facts referred to in the resolution proposal.

FOURTH: In the previously transcribed resolution proposal, the constitutive facts of the infringement were verified, and it was proposed that, by the Director, measures be imposed on the responsible party to adjust their actions to the regulations, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data

Protection Regulation, hereinafter GDPR), to each
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The control authority and according to the provisions of Articles 47, 48.1, 64.2, and 68.1 of the Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditional upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO DECLARE the termination of procedure EXP202302662, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER A.A.A. to notify the Agency of the adoption of the measures described in the legal grounds of the resolution proposal transcribed in this resolution within 10 days from the date this resolution becomes final and enforceable.

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THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative

Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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